

Naval Singh v. State of U.P.

Allahabad High Court · Division Bench · 31 May 2016 · Writ-C No. 26871 of 2016 · Writ-C No. 26871 of 2016 · **Writ disposed; petitioner relegated to clause 6.5(b); recovery stayed; restore on deposit.**

HEADNOTE

A consumer who disputes the accuracy of an electricity bill has a complaint before the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. Where recovery of outstanding dues turns on disputed facts, the writ is disposed of with liberty to complain under that clause, a short stay of recovery pending the complaint, and restoration of supply on deposit of the amount.

FACTUAL SUMMARY

Naval Singh petitioned the Allahabad High Court against recovery proceedings initiated by the electricity corporation for outstanding dues. He challenged the correctness of the bill that formed the basis of recovery. Counsel for the petitioner and for the corporation (respondent nos. 2 and 3) were heard. Disputed questions of fact were said to arise on the accuracy of that bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

Clause 6.5(b) provides a complaint before the competent authority where the consumer disputes the accuracy of the bill. Because disputed questions of fact were involved and that remedy was available, the writ was disposed of with liberty to complain under clause 6.5(b) within one week; the authority was directed to consider and pass orders in accordance with law within two weeks; recovery was to remain in abeyance for four weeks or till disposal of the complaint, whichever was earlier; and the connection was to be restored forthwith after the petitioner deposited the amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE MERITS OF THE RECOVERY

The Court declined to examine disputed questions of fact and relegated the consumer to a clause 6.5(b) complaint. ¶ 1